

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: June 29, 2026

Department C-15 hears law and motion on Mondays at 1:45 p.m.

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Dang v. America West Lender Services, LLC 2025-01477410 Demurrer to 1 st Amended Complaint	Defendants 5692 Karen Ave LLC and Edward Balta's Demurrer to Plaintiff's First Amended Complaint is OVERRULED. The Court ORDERS Defendants 5692 Karen Ave LLC and Edward Balta to file an answer within 20 days. To prove intentional interference with prospective economic advantage, a plaintiff must show: (1) the existence of an economic relationship between the plaintiff and some third party that contains the probability of future economic benefit to the plaintiff; (2) defendant's knowledge of the relationship; (3) intentionally wrongful acts by defendants designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by defendant's action. (<i>Cocoa AJ Holdings, LLC v. Schneider</i> (2025) 115 Cal.App.5th 980, 992-993 [citation omitted].) Defendants contend Plaintiff fails to allege Defendants had knowledge of her relationship or contract with Defendant American West Lender Services, LLC (AWLS) and that
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		Defendants committed any “intentionally wrongful acts” to interfere with the relationship. Plaintiff alleges: - Plaintiff was the highest bidder at a foreclosure auction. (FAC ¶ 1.) - Soon after, Plaintiff notified AWLS, the Trustee listed on the Certificate of Sale, it intended to file an affidavit and declare owner-occupancy. (FAC ¶ 3. AWLS responded to notify Plaintiff the sale was rescinded due to a filed bankruptcy. (FAC ¶ 3.) - Defendants SBR Empire LLC, 5692 Karen Ave LLC, and Balta knew of the pending trustee’s sale per the recording instruments such as Notice of Trustee’s Sale and the subsequent sale and knew the property had been sold to a third party on 1/24/25. (FAC ¶¶ 7, 21.) Plaintiff further alleges: - Defendants knew of the fraud and gave substantial assistance or encouragement to AWLS. (FAC ¶ 18.) - Defendants lied when stating the sale had to be rescinded due to bankruptcy. (FAC ¶ 35.) - Defendants encouraged AWLS and US Bank to rescind the transaction. (FAC ¶ 44.) Plaintiffs allegations are sufficient at the pleading stage.
2	Richardson v. City of Laguna Beach 2025-01510852 Demurrer to 1st Amended Complaint/Motion to strike portions of 1st Amended Complaint	Defendant State of California’s Demurrer to the First Amended Complaint (FAC) is SUSTAINED with 20 days leave to amend. Public entities are immune from common law tort liability and instead liability must be based on a statute. (Gov. Code, § 815(a).) As to the second cause of action for premises liability, Plaintiff cites no statute upon which he claims his cause of action is based. As to the third cause of action for negligence, Plaintiff cites to Government Code sections 815.2, 815.4, 820(a), 840.2, and 840.4. In a claim against a government entity, a plaintiff must plead “every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty.” (<i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802.) Plaintiff fails